

**SUPERIOR COURT OF CALIFORNIA
COUNTY OF MARIN**

DATE: 07/08/26 TIME: 1:30 P.M. DEPT: H CASE NO: CV0008602

PRESIDING: HON. SHEILA S. LICHTBLAU

REPORTER:

CLERK: A. ANDRES

PLAINTIFF: ROBBIE POWELSON

vs.

DEFENDANT: MARIN COUNTY SHERIFF
CIVILIAN OVERSIGHT COMMISSION ET
AL.

NATURE OF PROCEEDINGS: 1) DEMURRER 2) MOTION – STRIKE

RULING

Defendants County of Marin (“County”), erroneously also sued as Marin County Sheriff Civilian Oversight Commission (“Commission”) and Linn Walsh’s (“Walsh”) (collectively “Defendants”) Demurrer to the First Amended Complaint (“FAC”) is SUSTAINED in part, as to the First, Second and Third causes of action, with leave to amend. The Demurrer to portions of the Prayer is OVERRULED.

Defendants’ Motion to Strike is GRANTED with leave to amend.

BACKGROUND

Plaintiff initiated this action through filing a “Complaint for Violations of 42 USC § 1983 and Verified Petition for Writ of Mandate For Compliance with the California Public Records Act” on December 23, 2025 (“Complaint”). (RJN No. 4; Complaint, See Berg Decl., Exh. D) Plaintiff’s Complaint alleged that on December 8, 2025, he submitted a complaint and related materials to the Commission regarding an enforcement action involving Deputy Michael Thompson and Binford road resident, Sean Darning (“Darning Complaint”). (Compl., ¶ 6.) Darning had a lawsuit pending against Deputy Thompson at the time. (*Id.*) On December, 8, 2025, Plaintiff emailed Walsh and requested she forward his Darning Complaint to the Commission and alleges Walsh refused. (*Id.*, ¶7.) The Commission met on December 9 or 10, 2025 and Plaintiff attended that meeting. (Compl., ¶ 8; Berg Decl., Ex. D.) According to Plaintiff’s Complaint, he “personally distributed” his Darning Complaint to the Commission members before the meeting, and also spoke with Walsh. (*Id.*) Plaintiff alleges Walsh told him “she would ask County Counsel and then submit the documents” to the Commission members. (*Id.*) Plaintiff asserted that Walsh was not being truthful and that she privately told Commission members she could not distribute Plaintiff’s email with the Darning Complaint to them due to privacy concerns. (*Id.*, ¶ 9.) He alleges Walsh’s “intention was to block communication between

Plaintiff and the Commission” in order to protect her employer, the County, a defendant in Durning’s lawsuit. (*Id.*, ¶ 10.)

Plaintiff’s FAC was filed on or about February 9, 2026, and in it, Plaintiff removed reference to Walsh not being truthful, privately representing to the Commission she would not forward the documents because of privacy concerns, and additionally omitted reference to her responding to Plaintiff that she would check with County Counsel before submitting his documents. (RFJN No. 5; see generally, FAC, Berg Decl., Ex. E.) Plaintiff also omitted reference to the fact that he personally provided the Durning Complaint to the Commission within a day or two of his request that Walsh distribute it to Commission members via email. (*Ibid.*) Plaintiff’s FAC alleges Walsh refused to forward his Durning Complaint to the Commission because it included a lawsuit against the County of Marin, her employer, and that she told the Commission at the December 2025 meeting that Plaintiff’s email was not forwarded because it pertained to a lawsuit. (*Id.*, ¶ 12.) Plaintiff further alleges that Walsh took these actions using malice, oppression, and fraud. (*Id.*, ¶ 16.)

The FAC states two causes of action against defendant Walsh – 1) Violation of 42 USC § 1983 First Amendment and 2) Violation of California Constitution Article 1 § 3. Both causes of action arise out of Walsh’s alleged decision not to forward information submitted by Petitioner to the Commission members. The FAP states a third cause of action against the Commission and County for “Monell Liability.”

REQUESTS FOR JUDICIAL NOTICE

Defendants’ unopposed Requests for Judicial Notice Nos. 1-6 are GRANTED. (Evid. Code, § 452, subds. (a), (b), (d), (h).)

LEGAL STANDARD - DEMURRER

The function of a demurrer is to test the legal sufficiency of the challenged pleading. (*Hernandez v. City of Pomona* (1996) 49 Cal.App.4th 1492, 1497.) As a general rule, in testing a pleading against a demurrer, the facts alleged in the pleading are deemed to be true, however improbable they may be. (*Del E. Webb Corp. v. Structural Materials Co.* (1981) 123 Cal.App.3d 593, 604.) The court gives the pleading a reasonable interpretation by reading it as a whole and all of its parts in their context. (*Moore v. Regents of Univ. of Calif.* (1990) 51 Cal.3d 120, 125.)

In a demurrer proceeding, the defects must be apparent on the face of the pleading or via proper judicial notice. (*Donabedian v. Mercury Ins. Co.* (2004) 116 Cal.App.4th 968, 994.) The face of the complaint includes matters shown in exhibits attached to the complaint and incorporated by reference. (*Frantz v. Blackwell* (1987) 189 Cal.App.3d 91, 94.) “The only issue involved in a demurrer hearing is whether the complaint, as it stands, unconnected with extraneous matters, states a cause of action.” (*Hahn v. Mirda* (2007) 147 Cal.App.4th 740, 747.)

If the complaint fails to state a cause of action, the court must grant the plaintiff leave to amend if there is a reasonable possibility that the defect can be cured by amendment. (*Blank v. Kirwan* (1985) 39 Cal.3d 311, 317.) The onus is on the plaintiff to articulate the “specifi[c] ways” to cure the identified defect, and absent such an articulation, a trial or appellate court may grant leave to amend “only if a potentially effective amendment [is] both apparent and consistent

with the plaintiff's theory of the case.” (*Shaeffer v. Califia Farms, LLC* (2020) 44 Cal.App.5th 1125, 1145.)

DISCUSSION – DEMURRER

First Cause of Action - Violation of 42 USC § 1983 First Amendment (Against Walsh)

Defendants demur to Plaintiff's First Cause of Action on the grounds that it fails to state facts sufficient to constitute a cause of action and Walsh is immune from liability pursuant to qualified immunity based upon Plaintiffs failure to allege violation of clearly established law.

To state a claim under section 1983, a plaintiff must allege the violation of a right secured by the Constitution and laws of the United States, and must show that the alleged deprivation was committed by a person acting under color of state law. (*Arce v. Childrens Hosp. Los Angeles* (2012) 211 Cal.App.4th 1455, 1472. Internal citations omitted.) State courts look to federal law to determine what conduct will support an action under section 1983. (*Ibid.*) The threshold inquiry [in analyzing a section 1983 claim] is whether the evidence establishes that appellants have been deprived of a constitutional right. (*Id.*, at pp. 72-73.)

Here, Plaintiff alleges that Walsh's failure to transmit his complaint to the Commission constituted content-based speech restriction and because of this restriction, Plaintiff's advocacy was irreparably harmed because he was unable to petition the COC during a critical period in his advocacy. (FAC, ¶ 20.) However, Plaintiff's original Complaint alleged that he attended the Commission's meeting within one or two days of his request that Walsh distribute his Dering Complaint by email and “personally distributed” it to the Commission members before the meeting. (Compl., ¶ 8.)

The sham pleading doctrine prohibits attempts to avoid defects set forth in a prior complaint by ignoring them. (*Larson v. UHS of Rancho Springs, Inc.* (2014) 230 Cal.App.4th 336, 343, as modified (Oct. 2, 2014).) Any omissions or inconsistencies from prior pleadings must be explained, if the pleader fails to do so, the is not bound to accept as true allegations contrary to factual allegations in former pleading in the same case. (*Ibid.*)

Here, Plaintiff has failed to explain this omission. The allegation that he was able to pass out the Dering Complaint to board members in person within a day or two of his request to Walsh to email it out on his behalf, undermines his arguments regarding content based speech restriction. The allegations in the FAC, combined with the Court's consideration of the harmful omitted facts from the original Complaint, are insufficient to state a cause of action.

Furthermore, “government employees generally are shielded by qualified immunity ‘from liability for civil damages insofar as their conduct does not violate clearly established statutory or constitutional rights of which a reasonable person would have known.’ [Citation.] Qualified immunity protects ‘all but the plainly incompetent or those who knowingly violate the law.’” (*Casey N. v. Cnty. of Orange* (2022) 86 Cal.App.5th 1158, 1177.) Here, where it is alleged that Walsh failed to forward his email to Commission members but that he was able to transmit it directly to Commission members within a day or two of his request to Walsh, there has been no prima facie case of conduct violating an established right.

Second Cause of Action - Violation of California Constitution Article I § 3 (Against Walsh)

Defendants demur to Plaintiff's Second Cause of Action on the ground that it fails to state facts sufficient to constitute a cause of action, Walsh is immune from liability pursuant to qualified immunity based upon Plaintiffs failure to allege violation of clearly established law, and Plaintiff has failed to plead compliance with government claim presentation requirements under the Government Claims Act, Government Code section 945.4.

Article I, section 3, subdivision (a) of the state Constitution provides, "The people have the right to instruct their representatives, petition government for redress of grievances, and assemble freely to consult for the common good." (*Chorn v. Workers' Comp. Appeals Bd.* (2016) 245 Cal.App.4th 1370, 1385, as modified on denial of reh'g (Apr. 20, 2016).) For the reasons stated above, Plaintiff has failed to set forth facts sufficient to establish his right to instruct, petition, assemble, or access to the government or government information was restricted, nor are the facts alleged sufficient to state a prima facie case of conduct violating an established right, justifying Walsh's individual liability.

As to the argument that a government tort claims act claim was required, money damages are not an available remedy for a violation of the right to petition set forth in article I, section 3(a). (*MHC Fin. Ltd. P'ship Two v. City of Santee* (2010) 182 Cal.App.4th 1169, 1188, as modified on denial of reh'g (Apr. 9, 2010).) Therefore, it does not appear that such a claim would be required. This is a moot issue however, in light of the above.

Third Cause of Action – Monell Liability (Against the County and Commission)

Defendants demur to Plaintiff's Third Cause of Action alleging *Monell* liability against the County and the Commission on the grounds that it fails to state facts sufficient to constitute a cause of action and the Commission is not an entity subject to suit.

Monell provides that a governmental entity may only be held liable where the entity causes a constitutional violation. (*Arista v. Cnty. of Riverside* (2018) 29 Cal.App.5th 1051, 1064, as modified on denial of reh'g (Dec. 13, 2018), citing (*Monell v. Department of Social Services of City of New York* (1978) 436 U.S. 658.)) To establish *Monell* liability, a plaintiff must identify the challenged policy, practice, or custom, attribute it to the public entity itself, and show a causal link between the execution of the policy, practice, or custom, and the injury suffered. (*Ibid.*) In addition, plaintiffs must present scienter-like evidence of indifference on the part of a particular policymaker or policymakers. (*Ibid.*) The requirement of producing scienter-like evidence on the part of an official with policymaking authority is consistent with the conclusion that absent the conscious decision or deliberate indifference of some natural person, a [governmental entity], as an abstract entity, cannot be deemed to have engaged in a constitutional violation by virtue of a policy, a custom or failure to train. (*Ibid.*) In the absence of any unconstitutional statute or rule, it is plaintiff's burden to articulate a factual basis that demonstrates considerably more proof than a single incident. (*Ibid.*)

The FAC alleges "Acting under color of state law, the County of Marin and [Commission] had an official policy and custom during the time of the facts alleged in this

complaint of giving plenary power to Linn Walsh to control all public communications from the public to the [Commission].” (FAC, ¶ 27.) However, the FAC also alleges “Ms. Walsh would normally distribute Plaintiff’s documents pursuant to the custom of the [Commission] and County. But, Plaintiff’s documents included a lawsuit against the County of Marin, her primary employer. In order to protect her employer, Ms. Walsh, acting as a final policy maker of the [Commission], spontaneously created a content based restriction of speech for public documents sent to the commission.” (*Id.*, at ¶ 12.)

Here, Plaintiff has not alleged any unconstitutional statute or rule. It is therefore Plaintiff’s burden to articulate a factual basis consisting of more than a single incident. (*Arista, supra*, 29 Cal.App.5th at p. 1064.) Plaintiff has not done so. The only factual basis Plaintiff cites to is one incident where Walsh failed to forward an email. The FAC even acknowledges that Walsh would “normally” distribute the documents pursuant to the “custom” of the Commission and County.

For these reasons, the Third Cause of Action also fails to allege facts sufficient to state a cause of action.

Relief Sought in Prayer

Objections to the prayer of a complaint cannot be taken by demurrer. (5 Witkin, Cal. Proc. (6th ed. 2026) Plead, § 956; See also *Grisingher v. Shaeffer* (1938) 25 Cal.App.2d 5, 9.) Accordingly, the demurrer to portions of the prayer is OVERRULED.

For these reasons, the Demurrer to the FAC is SUSTAINED in part, as to the First, Second and Third causes of action, with leave to amend.

LEGAL STANDARD – MOTION TO STRIKE

The court may, upon a motion, or at any time in its discretion, and upon terms it deems proper, strike (1) strike out any irrelevant, false, or improper matter inserted in any pleading; or (2) strike out all or any part of any pleading not drawn or filed in conformity with the laws of California, a court rule, or an order of the court. (Code Civ. Proc., § 436, subds. (a)-(b).) The grounds for a motion to strike are that the pleading has irrelevant, false or improper matter, or has not been drawn or filed in conformity with laws. (Code Civ. Proc., § 436.) The grounds for moving to strike must appear on the face of the pleading or by way of judicial notice. (Code Civ. Proc., § 437.) “When the defect which justifies striking a complaint is capable of cure, the court should allow leave to amend.” (*Vaccaro v. Kaiman* (1998) 63 Cal.App.4th 761, 768.)

DISCUSSION – MOTION TO STRIKE

The Motion to Strike seeks to strike allegations in Plaintiff’s FAC pertaining to Plaintiff’s request and prayer for punitive damages. The motion is made on the grounds that Plaintiff’s FAC contains irrelevant, false, or improper matter, and/or is not drawn in conformity with laws, local rules, or order of court, and accordingly, paragraph 16 and subparagraph D in the prayer for relief should be stricken.

The County

Punitive damages are not recoverable from public entities. (Gov. Code, § 818.)

Walsh

Punitive damages may be imposed where it is proven by clear and convincing evidence that the defendant has been guilty of oppression, fraud, or malice. (Civ. Code, § 3294, subd. (a).) “Malice” is conduct intended by the defendant to cause injury to the plaintiff or despicable conduct which is carried on with a willful and conscious disregard of the rights or safety of others. (Civ. Code, § 3294, subd. (c)(1).) Despicable conduct means behavior that is “vile,” “base,” or contemptible” and that would be “looked down upon and despised by ordinary decent people,” in addition to willful and conscious disregard for the rights and safety of others. (*College Hospital, Inc. v. Superior Court* (1994) 8 Cal.4th 704, 725.) “Punitive damages are proper only when the tortious conduct rises to levels of extreme indifference to the plaintiff's rights, a level which decent citizens should not have to tolerate.” [Citation.]” (*Lackner v. North* (2006) 135 Cal.App.4th 1188, 1210.)

Walsh argues Plaintiff fails to state sufficient factual allegations against her to establish malice, or to show she willfully engaged in despicable conduct. This Court agrees. The allegations as they currently stand are insufficient to state a prima facie claim for punitive damages. (*Turman v. Turning Point of Cent. California, Inc.* (2010) 191 Cal.App.4th 53, 63 [A motion to strike punitive damages is properly granted where a plaintiff does not state a prima facie claim for punitive damages, including facts showing that defendant is guilty of oppression, fraud or malice].)

The Motion to Strike is therefore GRANTED with leave to amend.

All parties must comply with Marin County Superior Court Local Rules, Rule 2.10(B) to contest the tentative decision. Parties who request oral argument are required to appear in person or remotely by ZOOM. Regardless of whether a party requests oral argument in accordance with Rule 2.10(B), the prevailing party shall prepare an order consistent with the announced ruling as required by Marin County Superior Court Local Rules, Rule 2.11.

The Zoom appearance information for July, 2026 is as follows:

<https://marin-courts-ca-gov.zoomgov.com/j/1615487764?pwd=Ob4B5J7LLKcpnkxzJjEOSHnzEGafG.1>

Meeting ID: 161 548 7764

Passcode: 502070

If you are unable to join by video, you may join by telephone by calling (669) 254-5252 and using the above-provided passcode. Zoom appearance information may also be found on the Court's website: <https://www.marin.courts.ca.gov>

**SUPERIOR COURT OF CALIFORNIA
COUNTY OF MARIN**

DATE: 07/08/26 TIME: 1:30 P.M. DEPT: H CASE NO: CV0009514

PRESIDING: HON. SHEILA S. LICHTBLAU

REPORTER:

CLERK: A. ANDRES

PLAINTIFF: SAEED GHAFOORI ET AL.

vs.

DEFENDANT: BANK OF AMERICA
HOME LOANS ET AL.

NATURE OF PROCEEDINGS: MOTION – OTHER: TO EXPUNGE LIS PENDENS

RULING

Defendants Bank of America Home Loans; Bank of America, N.A., Successor By Merger to Bank of America Home Loan Servicing, Bank of New York Mellon; CWALT, Inc.; and Mortgage Electronic Registration Systems, Inc. (collectively “Defendants”) Motion for an Order Expunging the Lis Pendens recorded by plaintiffs Saeed (Paul) Ghafoori and Gissou Beykpour Ghafoori (collectively “Plaintiffs”) against the real property commonly known as 11 Sky Mill Road, Mill Valley, California 94941 is hereby GRANTED.

REQUEST FOR JUDICIAL NOTICE

Defendants’ Requests for Judicial Notice Nos. 1-8 are GRANTED. (Evid. Code, § 452, subds. (d), (h).)

DEFENDANTS’ STATEMENT OF PROCEDURAL HISTORY

Defendants submit the following facts in support of their Motion: In November 2005, Plaintiffs obtained a loan in the amount of \$2,555,000.00 from Countrywide Bank. (See RFJN, No. 1.) On July 5, 2012, an Assignment of Deed of Trust was recorded, showing that the Deed of Trust had been assigned to Bank of America, N.A. (“BANA”). (See RFJN, No. 2.) BANA currently owns and services the loan.

Plaintiffs fell behind on their mortgage obligations, and a Notice of Default was then recorded on December 5, 2016. (See RFJN, No. 3.) Rather than cure the default, Plaintiffs filed a lawsuit on February 14, 2017, claiming that the loan had been improperly securitized, although no securitization had occurred, and the facts showed that BANA owned the loan. Plaintiffs’ Complaint named 16 defendants – the vast majority of which never had any interest in the loan – including the Defendants in this action. After dismissing a number of the defendants, Plaintiffs and Defendants mediated the prior lawsuit, culminating in a settlement agreement executed by